

26STCV11993 26STCV11993

County: los-angeles

Division: Civil Law and Motion

Department: 529

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Case Number: 26STCV11993 Hearing Date: July 22, 2026 Dept: 529

Shanna dunson

v. sparks la sports, llc

Motion to disqualify

Date of Hearing: July

22, 2026 Trial

Date: Not Set

Department: 529 Case

No.: 26STCV11993

Moving Party: Plaintiff

Shanna Dunson

Responding Party: Defendant

Sparks LA Sports, LLC

BACKGROUND

On April 14, 2026, Plaintiff Shanna Dunson filed a complaint against Defendant Sparks LA Sports, LLC for Race Discrimination [FEHA], Family Responsibilities Discrimination (FEHA), Retaliation [FEHA] Retaliation (Labor Code §1102.5), Failure to Prevent Discrimination and/or Retaliation [FEHA], Violation of Labor Code § 970, and Wrongful Termination in Violation of Public Policy.

[Tentative]

Ruling

Plaintiff

Dunson's Motion to Disqualify Counsel is DENIED.

DISCUSSION

Request for Judicial Notice: Granted.

The court takes judicial notice of the existence of the pleading and court order but cannot consider the content of any pleading or finding of fact for purposes of ruling on the subject motion.

Standard

The court may exercise control “in furtherance of justice, the conduct of its ministerial officers, and of all other persons in any manner connected with a judicial proceeding before it, in every matter pertaining thereto.” (Code Civ. Proc., § 128, subd. (a)(5).) This authority necessarily includes disqualifying an attorney. (Metro-Goldwyn Mayer, Inc. v. Tracinda Corp. (1995) 36 Cal.App.4th 1832, 1837–1838) “The issue of disqualification ultimately involves a conflict between the clients’ right to counsel of their choice and the need to maintain ethical standards of professional responsibility.” (Id. at p. 1838.)

“Motions to disqualify counsel present competing policy considerations. On the one hand, a court must not hesitate to disqualify an attorney when it is satisfactorily established that he or she wrongfully acquired an unfair advantage that undermines the integrity of the judicial process and will have a continuing effect on the proceedings before the court. On the other hand, it must be kept in mind that disqualification usually imposes a substantial hardship on the disqualified attorney's innocent client, who must bear the monetary and other costs of finding a replacement...” (Gregori v. Bank of America (1989) 207 Cal.App.3d 291, 300; see Oaks Management Corporation v. Superior Court (2006) 145 Cal.App.4th 453, 467.)

“[D]isqualification is proper as a prophylactic measure to prevent future prejudice to the opposing party from information the

attorney should not have possessed'; an affirmative showing of existing injury from the misuse of privileged information is not required. (Citation.) A trial court, however, may not order disqualification "simply to punish a dereliction that will likely have no substantial continuing effect on future judicial proceedings." (McDermott Will & Emery LLP v. Superior Court (2017) 10 Cal.App.5th 1083, 1120.)

Advocate

Witness Rule

California

recognizes the attorney advocate witness role as a basis of disqualification. "A lawyer shall not act as an advocate in a trial in which the lawyer is likely to be a witness unless: (1)

the lawyer's testimony relates to an uncontested issue or matter; (2) the lawyer's testimony relates to the nature and value of legal services rendered in the case; or (3)

the lawyer has obtained informed written consent¹ from the client.

If the lawyer represents the People or a governmental entity, the consent shall be obtained from the head of the office or a designee of the head of the office by which the lawyer is employed." (Rules Prof. Conduct, rule 3.7(a).) The purpose of the rule itself is to "prevent fact finder confusion regarding whether an advocate-witness's statement is to be considered proof or argument." (Doe v. Yim (2020) 55 Cal.App.5th 573, 582.)

Plaintiff

moves for disqualification of Defense counsel, including the two lawyers applying for pro hac vice admission, attorneys William Tarnow and Alissa Griffin. Plaintiff alleges associates and/or partners of the law firm, Neal, Gerber & Eisenberg LLP, interviewed Plaintiff and conducted an internal investigation on behalf of their client following submission of Plaintiff's employment complaints regarding a hostile work environment to Defendant's Director of Human Resources and the office of general counsel for the National Basketball Association (NBA). Plaintiff alleges being "required to sign an 'interview statement'" at which time it was disclosed the statement constituted attorney client privileged information only subject to waiver by Defendant. [Comp., ¶¶ 13-20.] The interview included identification of witnesses, and examples of discriminatory conduct. [Id., ¶¶ 21-22.]

Plaintiff

contends attorney William Tarnow conducted the interview, and Sonya Rosenberg

directed the investigation. Attorney Alissa Griffin also advised Defendant on the steps leading to the subject complaint. Plaintiff moves on grounds of undue prejudice due to the pre-litigation conduct.

Defendant challenges both the factual basis and broad scope seeking disqualification of the entire firm. Defendant denies any substantial contact between attorneys Tarnow and Griffin, and Plaintiff. Tarnow only sent an “administrative in nature” email to Plaintiff, and Griffin never communicated with Plaintiff in any way. Defendant identifies attorneys Rosenberg and Chertok, as responsible for the investigation, and denies any necessity of calling Tarnow or Griffin as potential witnesses.

In addition to the complaint, Plaintiff’s counsel submits a declaration, with certain exhibits including the complaint to the NBA league office, investigation email from the NBA, email from Defendant whereby attorney Tarnow was cc’d, an email from Tarnow whereby Tarnow requests an interview and identifies both Sonya Rosenberg and Ben Cherek as the responsible parties for the investigation, the interview statement without any actually identified attorney, and a notice of a pending follow-up to the investigation from Sonya Rosenberg. [Declaration of Debra Lauzon, Ex. 1-5.]

Defendant submits no declaration in support of any representations made regarding handling counsel. The motion, including the declaration of attorney Lauzon confirm the involvement of attorney Rosenberg. Defendant identifies attorney Chertok instead of Griffin as involved in the investigation, which also conforms to the exhibits submitted with the motion. The court also finds the email from attorney Tarnow administratively routine without any sign of engagement into the claim(s).

Accepting the undisputed existence of the involvement of the Neal, Gerber & Eisenberg LLP firm in the pre-litigation investigation of the claim(s) leading to termination and the filing of the subject complaint, at a minimum, the circumstances support consideration of the application of the rule to at least the two attorneys involved in the pre-litigation investigation. (Doe v. Yim, supra, 55 Cal.App.5th at pp. 583-584.)

Plaintiff

submits no evidence establishing any involvement of Griffin. The motion apparently preemptively names Griffin as part of the greater effort to disqualify the entire firm.

The

direct participation of Rosenberg and Chertok leads to the first step of consideration for disqualification: the threat of prejudice caused by the necessity of attorneys Rosenberg and Chertok to appear as witnesses at trial. The existence of the interview statement and investigation report while a likely part of the trial, reliance on testimony from counsel remains an unfounded position for purposes of establishing a direct concern with prejudice. In other words, Plaintiff lacks any showing that the source of said items exclusively depends on the testimony of the two attorneys as opposed to other means of admission. (Smith, Smith & Kring v. Superior Court (Oliver) (1997) 60 Cal.App.4th 573, 581.)

The

policy for disqualification fundamentally requires a sufficient showing of potential, actual prejudice. The threat must be practical rather than speculative and for purposes of gaining a tactical advantage and improperly excluding a client from utilizing counsel of their choice. (Id. at pp. 580-581; see Lopez v. Lopez (2022) 81 Cal.App.5th 412, 425.)

“Speculative contentions of conflict of interest cannot justify disqualification of counsel.” (Smith, Smith & Kring v. Superior Court (Oliver), supra, 60 Cal.App.4th. at p. 582.)

The motion also lacks any acknowledgment regarding the right of Defendant to waive the attorney client privilege as provided in section 3.7(a)(3), which provides a specific exemption from disqualification upon approval by the client (e.g. Defendant) The interview statement in and of itself is identified as Defendant privileged work product. Plaintiff presents no dispute to this categorization and instead appears to suggest prejudice from Plaintiff's responses.

The exemption reflects an acceptance of the ostensible disadvantage of counsel both testifying and advocating as part of the greater preference for allowing a client to choose preferred counsel. While integrity of the judicial process remains paramount, the challenging party must also still address this standard. (Lyle v. Superior Court (1981) 122 Cal.App.3d 470, 482-483.) Notwithstanding the waiver by Defendant, and only considering Plaintiff's position that certain conveyed information prejudices the prosecution of the claims, the position still lacks support.

Nothing in the motion or declaration of counsel identifies any information unique to the action that would not otherwise readily become part of shared information via discovery, including deposition. The policy supports a superseding finding in favor of disqualification where confusion and veracity become the paramount concern. The practical positions relied upon in the motion fall short of this standard in that nothing in the motion establishes a potential scenario where all information comes through any associate of the law firm and every firm employee becomes instantly discredited simply by association. The motion does not support such a sweeping finding.

The motion is therefore denied based on insufficient legal argument and evidence in support of disqualification other than the existence of partial involvement of certain counsel in the pre-litigation investigation. The motion fails to establish a broad encompassing basis for disqualification of the entire firm, and rejection of any potential severance of involvement of the pre-litigation attorneys from trial, even if Plaintiff established their presence as absolutely integral to the trial. The involvement of proposed pro hac vice counsel presents an even more attenuated connection given the lack of any evidence of the attorneys' substantive involvement in any pre-litigation actions.